

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

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**COMPLAINANT’S OPPOSITION TO RESPONDENTS’ PARTIALLY UNOPPOSED  
MOTION TO EXTEND DEADLINE AND INCREASE PAGE LIMIT**

Complainant 20230930-DK-Butterfly-1, Inc., f/k/a Bed Bath & Beyond Inc. (“BBBY” or “Complainant”), by and through counsel, respectfully submits this opposition to Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited’s (together, “OOCL”) April 28, 2026 Partially Unopposed Motion to Extend Deadline and Increase Page Limit (the “Motion”).

**PROCEDURAL BACKGROUND**

On April 24, 2026, the Presiding Officer entered an Initial Decision (the “Initial Decision”) finding in favor of BBBY on four counts and awarding reparations of \$45,600,599.25 plus interest against OOCL. (Initial Decision, Sec. A (hereafter the “Initial Decision”).) That same day, counsel for OOCL emailed BBBY stating that OOCL intended to file a Motion to Extend requesting a 60-day extension of the deadline to file exceptions to the Initial Decision and an increase of the page limit of the exceptions to 100 pages and asking if BBBY would oppose. *See* Exhibit 1 attached hereto (email thread between counsel).

On April 27, 2026, BBBY replied to OOCL, stating that it would not oppose the motion with regard to the 60-day extension for each party to file exceptions, conditioned on a joint request that the parties also seek a reciprocal extension (60 days) of the deadline for each party to reply to

the others' exceptions. *Id.* BBY also stated that it *would* oppose the request for additional pages as unnecessary. *Id.* On April 28, 2026, OOCL filed the Motion, which did not include any mention of a reciprocal extension for replies to exceptions.<sup>1</sup>

### LEGAL STANDARD

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause."

### ARGUMENT

#### **OOCL's Motion Should Be Denied Because OOCL Failed to Disclose the Conditional Nature of BBY's Agreement and Fails to Show Good Cause for Additional Pages for Exceptions.**

BBY explicitly conditioned its agreement to OOCL's proposed request for an extension of the deadline for exceptions on OOCL also including in its Motion a joint request for a corresponding extension of the deadline for replies to exceptions. Both the originally filed and "Corrected" versions of OOCL's Motion, however, fail to disclose that condition, instead creating the false impression that BBY had agreed to that portion of OOCL's Motion without caveat. As submitted, the Motion potentially prejudices BBY by affording OOCL—the losing party in this proceeding—a substantial extension to prepare and file exceptions (which, as reflected in the Motion, OOCL clearly intends to be as voluminous as possible) but providing BBY—the prevailing party—with a far shorter period of time to respond to those exceptions.

OOCL's Motion does not suggest, much less establish, good cause for its requested *doubling* of the already-substantial 50-page limit for exceptions. The parties' briefing of the

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<sup>1</sup> OOCL filed two versions of the Motion on the same day, with the second, "Corrected" version adding "Partially Unopposed" to the Motion caption but adding no other substance or mention of BBY's conditional agreement to the 60-day extension of the deadline for exceptions.

claims, defenses, and issues in this case has already been quite extensive, and exceptions are not the place for parties to rehash every single argument, theory, or position asserted in the case. BBY respectfully submits that 50 pages is more than sufficient to identify the points in the Initial Decision with which OOCL disagrees. OOCL's references to delays in the receipt of the Initial Decision are irrelevant to the number of pages needed, and the voluminous evidence in this case was already addressed at great length in the parties' merits briefing. Although the Initial Decision, in keeping with the parties' extensive briefing and the substantial factual record, was understandably lengthy, that fact alone does not justify the doubling that OOCL is requesting.

If the Presiding Officer grants the 60-day extension sought by the Motion, the potential prejudice discussed above constitutes good cause for the Presiding Officer also to grant a corresponding 60-day extension of the deadline for replies to exceptions. Both parties received the Initial Decision at the same time, and there is no basis to afford one party more time, or more pages, than the other to prepare, or respond to, exceptions to that Initial Decision.

### **CONCLUSION**

For the foregoing reasons, BBY respectfully requests that the Presiding Officer (1) deny OOCL's request in its Motion to increase the parties' page limit for exceptions to the Initial Decision and (2), to the extent the Presiding Officer grants OOCL's request to extend the deadline for filing exceptions to the Initial Decision, grant a corresponding extension of the deadline to file replies to exceptions.

Dated: April 29, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Lee Hill

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*Certificate of Service*

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

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Dated: April 29, 2026

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